

Cookie Policy

What we store on your device, the legal basis for it, and how to control it.

DRAFT FOR LEGAL REVIEW — NOT LEGAL ADVICE. This document describes the website *as currently built*. If you add analytics, advertising, chat widgets, heatmaps, embedded video or social sharing buttons, this policy becomes inaccurate immediately and a consent banner becomes legally necessary. Have it reviewed by a qualified UK lawyer and re-audit it whenever the site changes.

1. The law that applies

Cookies and similar technologies are governed in the UK by the **Privacy and Electronic Communications Regulations 2003 (PECR)**, regulation 6, read together with the **UK GDPR** standard of consent.

This is reserved law and applies identically in Scotland — unlike our property and contract documents, nothing in this policy changes because we operate from Edinburgh.

In practice this means:

- You must be told, in clear terms, what is stored on your device and why.
- Anything that is **not strictly necessary** to deliver the service you asked for requires your **consent before it is set** — not after.
- Consent must be a positive action. Pre-ticked boxes, and banners that say “by continuing to browse you accept cookies”, are **not valid consent**.
- Rejecting must be as easy as accepting. A prominent “Accept all” with no equally prominent “Reject all” is a position the ICO has repeatedly warned against.
- Consent must be as easy to withdraw as to give.

“Strictly necessary” is a narrow exemption. It covers things like keeping items in a basket or maintaining a login session. It does **not** cover analytics, however anonymous the provider claims it is.

2. What this website currently uses

This build of the site sets **no advertising, tracking or analytics cookies**. It uses browser local storage for a single item:

Name	Type	Purpose	Expires	Category
upbss-theme	Local storage	Remembers whether you chose the light or dark version of the site	Until you clear it	Functional — set only when you click the theme toggle

This item contains no personal data, is never transmitted to any server, and is created only when you actively choose a theme. If you never touch the theme toggle, nothing is stored.

Point to settle with your adviser. A preference the user has explicitly requested has a reasonable claim to the “strictly necessary” exemption, on the basis that storing it is how the service you asked for is delivered. That view is defensible but not risk-free. The conservative approach is to treat it as functional and mention it in a short banner. Since it is the only item stored, the cost of the conservative approach is low.

3. Third-party requests

Even without cookies, loading a resource from another company’s server discloses your IP address and browser details to that company.

Third party	What is loaded	What this means
Google Fonts (Google LLC)	The Fraunces, Work Sans and Space Mono typefaces	Your IP address is disclosed to Google, and may be processed outside the UK.

Recommendation. Self-host the three font files and remove the Google Fonts links from the page head. This removes an international data transfer and a third-party disclosure entirely, for perhaps an hour of work, and also makes the site load faster and work offline. A German court has previously found that passing IP addresses to Google Fonts without consent infringed data protection law; the UK position is not identical, but the risk is avoidable at negligible cost. The site is already built to fall back to system fonts.

4. If analytics are added later

Analytics cookies are **not** strictly necessary and require consent before being set. If analytics are introduced, the following must all be in place before launch:

- A consent banner that blocks the analytics script until the visitor accepts.
- “Reject all” presented as prominently as “Accept all”, on the first layer of the banner.
- A way to change the choice later, reachable from every page.
- This policy updated to name the provider, list each cookie, its purpose and its lifespan.
- A record of consents, so you can demonstrate compliance.

The same applies to embedded maps, video players, live chat and social media widgets, all of which typically set third-party cookies on load.

5. How to control storage yourself

You can clear or block cookies and local storage in your browser settings, and can browse in a private window to discard everything on close. Clearing the theme entry simply means the site follows your operating system’s light or dark setting again.

Guidance for each major browser is published by its maker; the ICO also publishes plain-English guidance for the public at ico.org.uk.

6. Complaints

If you are unhappy with how we use cookies, contact us at [\[EMAIL\]](#). You may also complain to the Information Commissioner's Office, which regulates PECR: **ico.org.uk/make-a-complaint**, helpline 0303 123 1113.

7. Changes

This policy will be updated whenever the technologies used on the site change. The version published on the website is the one that applies.

upbss — Cookie Policy. Version 0.2 (draft, Scotland). Last updated [\[DATE\]](#). Accurate as at the current build, which sets no tracking cookies. Re-audit before launch and after any change to third-party scripts.